

APPENDIX C

EXECUTIVE OFFICE OF ENVIRONMENTAL AFFAIRS DIVISION OF CONSERVATION SERVICES

251 Causeway Street
Boston, MA 02114-2150
(617) 626-1012

DATE: _____

MUNICIPALITY: _____

NUMERIC ASSIGNMENT: _____

CONSERVATION RESTRICTION FIELD INSPECTION

1. MUNICIPALITY: Boxford LOCATION (street, road, etc): 23 Washington Street
2. GRANTOR: Judith A. Hills, Trustee GRANTEE: Boxford Open Land Trust
3. NEW SITE: ☒ ADDITION TO SITE: _____ TOTAL ACRES: 21.76 TERM: Perpetual

4. ARE BUILDINGS INCLUDED? ☒ YES ☐ NO
If yes, estimate value, condition, and existing or proposed use. (include photographers and negatives)

Farm outbuilding, possibly once used as a shed or stable, currently in poor condition.

5. PRESENT AND PAST USE OF SUBJECT PROPERTY AND ADJACENT LANDS:
(please include USGS topographical maps showing subject and adjacent public lands, if any)

Past use as farmland. Current use is farmland for portions of site abutting Washington Street (approximately 7 acres), and unimproved woodland for portions along Johnson's Pond (approximately 14 acres).

6. BRIEF DESCRIPTION OF PROPERTY INCLUDING NATURAL RESOURCES AND ANY UNIQUE FEATURES:

Property is horseshoe-shaped, wrapping around a 2.63 acre parcel on Washington Street. Two scenic agricultural fields front on Washington Street. A wooded area behind these two fields includes approximately 700 feet of shoreline along Johnson's Pond. The terrain is flat in the area of the agricultural fields. The wooded area slopes moderately towards Johnson's Pond. The property includes a variety of natural communities, including healthy elm trees, black birches, oaks, maples and stands of very large white pines, as well as swans, a variety of duck species, Canada Geese, cormorants, and on land, turkey, coyote, deer, foxes, etc. The property is designated as NHESP wetlands habitat.

- a. Are prohibited activities sufficient to protect the resource values? ☒ Yes ☐ No
- b. Are retained uses compatible with the preservation or protection of the natural resources?
☒ Yes ☐ No (if answers to 6a or 6b are no, please explain in 8 below)

7. ARE PUBLIC ACTIVITIES PERMITTED? ☐ Yes ☒ No

If yes, please explain NATURE and SCOPE: Not applicable

8. COMMENTS AND RECOMMENDATIONS:

The scenic values of the agricultural fields along Washington Street contribute significantly to the rural character of Boxford, particularly as they are located at the entrance to town along a key transportation route. The wooded slopes along Johnson's Pond contribute significantly to the scenic value of Johnson's Pond as viewed from Groveland. The property is important to the maintenance of the water quality and the habitat in, on, and surrounding Johnson's Pond, which

Subj: **Re: your land**
 Date: 8/1/2007 4:01:57 P.M. Eastern Daylight Time
 From: judithhills@yahoo.com
 To: Mymol@aol.com

Hi,

Thanks we will draw a sketch. I am wondering if we have to have it surveyed into the six lots which I understand we could carve out before I can have it appraised? We have planned to put the driveway on the edge and have worked out an easement. Yes please give me the name of the appraisers.

Thanks,

Judy

Mymol@aol.com wrote:

Dear Judy -

I spoke to the planning board administrator today and to the BOLT lawyers (we have access to two) and these are the answers I've come up with so far.

1. First, why not make a sketch, using your plan of where you think you want to put the building envelope (house) and the driveway to it. One could present this to the Planning Board as an informal proposal. Check with your engineer (Atlantic...) For a useful easement, it would be wise to put the driveway along the edge of the land, not cutting a swath through the middle. Ideally, it would be a gravel driveway.
2. Get the land appraised by an IRS qualified appraiser. BOLT has a list of IRS qualified appraisers that have done appraisals in Boxford for many years. This appraisal should be two-fold - one with development possibilities in mind, the 2nd could be an opinion of value as to the value of one buildable lot on an easement. My guess is that the difference in value would probably be significant and this would allow for a tax deduction. If you wish, I can give you the names and numbers of these appraisers. These are things you need to discuss with your attorney or financial advisor.
3. The chances for the current tax law, either in its present form or somewhat altered, to be extended, appear to be positive, but no guarantees as yet.
4. Even if the easement is in the "pipeline", until it is "executed" it probably doesn't count. However, depending on how aggressively you wish to move ahead, and depending on what your advisors tell you, there might be a chance of getting this to the Office of Environmental Affairs (the name keeps changing - I think this is current) by October, which might improve the chances of getting it done in 2007.

Yours, Natasha

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